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The Saudi Labor Law: Key Regulations & Employee Rights



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The Saudi Labor Law is a comprehensive legal framework designed to regulate employment relationships in the Kingdom of Saudi Arabia. Established to protect the rights of both employers and employees, this legislation plays a crucial role in the economic growth and development of the country. As Saudi Arabia continues to diversify its economy and attract foreign investment, understanding labor laws becomes increasingly important for businesses and workers alike. This law encompasses various aspects of employment, including contracts, wages, working hours, termination procedures, and employee rights. By fostering a balanced and fair labor market, the Saudi Arabia Labor Law aims to promote a stable working environment, enhance productivity, and ensure equitable treatment for all parties involved.

المحتويات [hide]

- 1 Article 81 Saudi Labor Law
- 2 Article 72 Saudi Labor Law
- 3 Labor Law Article 80
- 4 Saudi Labor Law Working Hours



- 6.1 What is the new labor law in Saudi Arabia?
- 6.2 How much will I pay if I resign in Saudi Arabia?
- 6.3 How to file a complaint against an employer in Saudi Arabia?
- 6.4 Can I resign during a contract period in Saudi Arabia?

Article 81 Saudi Labor Law

Article 81 Saudi Labor Law allows workers to terminate their employment without notice under specific circumstances, safeguarding their rights. These circumstances include situations where the employer fails to meet essential contractual or statutory obligations, engages in fraudulent practices during hiring, or assigns the worker tasks significantly different from the agreed-upon work without consent. Additionally, this article protects workers from violent acts or immoral behavior by the employer or their representatives, as well as abusive treatment characterized by cruelty or injustice. It also addresses workplace safety concerns, enabling workers to leave if serious hazards are present and the employer neglects to address them. Finally, if the employer's actions unjustly force the worker to appear as the one terminating the contract, the worker is also justified in leaving without notice. This provision emphasizes the importance of a fair and safe work environment in Saudi Arabia.



Saudi Labor Law

Article 72 Saudi Labor Law

Article 72 Saudi Labor Law plays a crucial role in outlining the procedures related to the imposition of penalties on workers. This article ensures that employees are formally notified of any disciplinary actions taken against them, thereby promoting transparency and fairness within the workplace. According to this provision, a worker must receive written notification of the penalty imposed, which is essential to safeguard their rights and ensure they are aware of the charges against them.

Read also: Sick Leave Saudi Labor Law: Know Your Essential Rights (<https://etqanlawfirm-sa.com/en/sick-leave-saudi-labor-law/>)

If a worker refuses to accept the notification or is absent, the law mandates that the notice be sent to the address recorded in their employment file by registered mail. This procedure ensures that the worker has no valid grounds to claim ignorance of the penalty. Furthermore, the amended version of Article 72 introduces an important change by allowing workers to file a grievance in writing against the penalty decision within 30 days of notification, an extension from the previous 15 days.

This change reflects a broader commitment to protecting employee rights and encouraging due process. If the grievance is either rejected or not addressed within 15 days, workers retain the right to object to the penalty in labor courts within another 30 days. This structured process underscores the importance of fair treatment and the right to appeal against punitive measures, thus fostering a more equitable work environment in Saudi Arabia.



Labor Law Article 80 outlines the conditions under which an employer is allowed to terminate an employee's contract without notice, compensation, or indemnity. This article emphasizes that termination can only occur in specific circumstances, ensuring that employees are protected from unfair dismissal. Such circumstances include instances of employee misconduct, such as assaulting a superior, failing to meet their contractual obligations, or intentionally causing material loss to the employer. Additionally, employees can be terminated if they are absent without valid reasons for prolonged periods or if they misuse their position for personal gain or disclose trade secrets. Importantly, employers are required to give workers an opportunity to present their objections before finalizing the termination, promoting fairness and due process in employment relationships. This article reflects the commitment of the Saudi Labor Law to balance the rights and responsibilities of both employers and employees in the workplace.

Saudi Labor Law

Saudi Labor Law Working Hours

The Saudi Labor Law Working Hours regulates working hours to ensure employee welfare and productivity. According to Article 98, employees may not work more than eight hours a day or forty-eight hours a week. During Ramadan, working hours for Muslim employees are reduced to a maximum of six hours a day or thirty-six hours a week. Article 99 allows for the possibility of extending daily hours to nine for specific job categories or industries, particularly those that do not require continuous work, while hazardous jobs may have reduced hours of seven per day. Additionally, Article 100 provides employers with the option to exceed the standard working hours with the approval of the Ministry, as long as the average does not surpass the established limits over a rolling three-week period. These regulations aim to foster a balanced work environment while accommodating various industry needs.

Check out: The New Companies Law Saudi Arabia Regulations in 2025 (<https://etqanlawfirm-sa.com/en/companies-law-saudi-arabia/>)

Saudi Labor Law Amendments

The recent Saudi Labor Law (<https://www.hrsd.gov.sa/sites/default/files/2024-10/hrsd.pdf>) Amendments aim to enhance the work environment and align with Saudi Vision 2030. Key features include:

1. Expanded Provisions: Modifications to 38 articles, removal of 7 articles, and addition of 2 new articles.
2. Enhanced Worker Protections: Updated regulations on resignation, leave entitlements, and grievance procedures, along with penalties for unlicensed recruitment activities.
3. Focus on Training and Development: Employers are required to implement training policies to improve employee skills and job performance.
4. Support for Employment: The amendments encourage job stability and are designed to increase employment opportunities, particularly for Saudi citizens and small to medium enterprises.
5. Maritime Labor Changes: Revised regulations specific to maritime employment, addressing the unique needs of this sector.



(<https://etqanlawfirm-sa.com/en/>)

aiming to create a more sustainable and attractive labor market in Saudi Arabia. For detailed information, stakeholders are encouraged to refer to the Ministry of Human Resources and Social Development (<https://www.hrsd.gov.sa/en/>)'s official resources.

Learn about: Joint Stock Company: History & Types in Saudi Arabia (<https://etqanlawfirm-sa.com/en/joint-stock-company/>)

In conclusion, the Saudi labor law (<https://www.hrsd.gov.sa/>) serves as a vital framework that governs the employment landscape in the Kingdom of Saudi Arabia. By establishing clear guidelines for both employers and employees, it ensures a balance between rights and responsibilities, fostering a more equitable and productive working environment. As the Saudi economy continues to evolve, so too will the complexities of its labor market, necessitating ongoing evaluation and adaptation of labor laws to meet the needs of a diverse workforce. Understanding these regulations is essential for all stakeholders, including businesses, employees, and policymakers, as they navigate the opportunities and challenges presented by the modern job market. By upholding the principles set forth in the labor law, Saudi Arabia can continue to promote fair labor practices and contribute to the overall prosperity of its economy.

FAQs

What is the new labor law in Saudi Arabia?

The new labor law in Saudi Arabia enhances employee rights, specifies contract terms, regulates working hours, and addresses workplace disputes, aiming to improve working conditions and protections.

How much will I pay if I resign in Saudi Arabia?

The cost of resigning in Saudi Arabia depends on your contract terms, including potential notice periods, end-of-service benefits, and any financial penalties specified in your agreement.

How to file a complaint against an employer in Saudi Arabia?

To file a complaint against an employer in Saudi Arabia, visit the Ministry of Human Resources and Social Development website or contact labor courts directly to submit your grievance.

Can I resign during a contract period in Saudi Arabia?

Yes, you can resign during the contract period in Saudi Arabia as per Article 79 bis, but you must follow the regulations outlined in the Saudi labor law, including notice periods.

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Article 77 Saudi Labor Law: Employee Compensation Rights

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